

Court No. - 40

Case :- WRIT - C No. - 18857 of 2018

Petitioner :- Sunil Yadav

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- A.C.Srivastava, Anay Kumar Srivastava

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Shashi Kant, J.

Heard learned counsel for the petitioner and Sri Chandan Agarwal, learned counsel for the respondent no.4.

The petitioner has been subjected to an assessment of an electricity consumption bill which is being challenged on the ground that such assessment is in violation of the procedure prescribed under Clause 6.8 of the U.P. Electricity Supply Code, 2005. It is urged that the provisional assessment was also not carried out in accordance with the terms of the Code nor any final assessment order has been passed after providing an opportunity to file objection to the petitioner.

Sri Chandran Agarwal on the basis of instructions states that it appears that since the petitioner did not file any objection timely, the provisional assessment was treated to be final assessment order and the recovery proceedings have been set into motion.

We in the aforesaid circumstances direct that the petitioner will file his objections along with a certified copy of this order before the fourth respondent within ten days from today. The respondent no.4 shall proceed to pass an appropriate order in accordance with law and the recovery proceedings shall abide by the order to be passed by the respondent no.4, Executive Engineer, Ghaziabad accordingly. In the event the petitioner is still aggrieved it is open to him to file an appeal before the appropriate Forum under Section 127 of the U.P. Electricity Act, 2003. The writ petition stands disposed of with the said directions.

Order Date :- 24.5.2018

R./